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Attorneys for Defendants
KAPOLEI CHARTER SCHOOL and
WANDA VILLAREAL, in her individual and official capacities

IN THE CIRCUIT COURT OF THE FIRST CIRCUIT
STATE OF HAWAII

HEIDI AKAU, as Guardian Prochein Ami of
R.A., a minor; TRISHA BOUCHER, as
Guardian Prochein Ami of C.P., a minor;
RHONDA MORALES, as Guardian Prochein
Ami of A.M.S., a minor,

Plaintiffs,

vs.

WANDA VILLAREAL, in her individual and
official capacity; KAPOLEI CHARTER
SCHOOL; DEPARTMENT OF EDUCATION
– STATE OF HAWAII; HAWAII STATE
PUBLIC CHARTER SCHOOL
COMMISSION; JOHN DOES 1-10; JANE
DOES 1-10; DOE PARTNERSHIPS 1-10;
DOE CORPORATIONS 1-10; ROE “NON-
PROFIT” CORPORATIONS 1-10; ROE
GOVERNMENT ENTITIES 1-10,

Defendants.

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FIRST CIRCUIT
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Civil No.: 1CCV-20-0000138

(Assault, Battery, False Imprisonment, Violation of
Civil Rights Under State Law, Negligence,
Defamation, Negligent Hiring, Retention and
Training, Intentional Infliction of Emotional
Distress, Negligent Infliction of Emotional Distress,
Invasion of Privacy, Negligent Failure To Protect
While In A Fiduciary Capacity, Conspiracy)

DEFENDANTS WANDA VILLAREAL, IN
HER INDIVIDUAL AND OFFICIAL
CAPACITIES, AND KAPOLEI CHARTER
SCHOOL'S ANSWER TO PLAINTIFFS'
SECOND AMENDED COMPLAINT, FILED
FEBRUARY 8, 2023; CERTIFICATE OF
SERVICE

Judge: Honorable Kevin T. Morikone
Trial Date: July 17, 2023

DEFENDANTS WANDA VILLAREAL, IN HER INDIVIDUAL AND OFFICIAL
CAPACITIES, AND KAPOLEI CHARTER SCHOOL’S ANSWER TO
PLAINTIFFS’ SECOND AMENDED COMPLAINT, FILED FEBRUARY 8, 2023

Defendants Kapolei Charter School (“KCS”) and Wanda Villareal (“Dr. Villareal”), in her individual and official capacities, (collectively, “Defendants”) by and through their attorneys, Anne E. Lopez, Attorney General of the State of Hawai‘i, and Amanda J. Weston and Justine Hura, Deputy Attorneys General, hereby answers Plaintiff’s Second Amended Complaint, filed on February 8, 2023, Dkt No. 360.

FIRST DEFENSE

The Complaint fails to state a claim against Defendants upon which relief can be granted.

SECOND DEFENSE

1. In response to the allegations contained in paragraphs 1, 2, 3, 4, 5, 6, and 11 of the Complaint, Defendants are without sufficient information and knowledge to form a belief as to the truth or falsity of the allegations contained in said paragraphs, and on that basis, deny the same.

2. In response to the allegations contained in paragraph 7 of the Complaint, Defendants admit only that Dr. Villareal is the School Director of Kapolei Charter School and a resident of the City and County of Honolulu, State of Hawai‘i. Defendants deny all allegations of wrong-doing alleged against them in said paragraph. Defendants deny that Dr. Villareal was “chosen by herself.” Regarding the remainder of the allegations in said paragraph, Defendants are otherwise without sufficient information and knowledge to form a belief as to the truth or falsity of the allegations contained in said paragraph, and on that basis, deny the same.

3. Defendants deny the allegations contained in paragraphs 13, 15, 16, 17, 18, 19, 20, 21, 22, 23, 25, 27, 28, 30, 33, 34, 35, 37, 40 and 41 of the Complaint.

4. In response to the allegations contained in paragraphs 8, 10, 26, 29, 32 and 36 of the Complaint, these allegations contain legal conclusions, and are not factual allegations; therefore, no response is required. To the extent that a response is required, Defendants deny the allegations contained in said paragraphs.

5. In response to the allegations contained in paragraph 9 of the Complaint, Defendants admit only that the State is a sovereign governmental entity established by law. The remaining allegations are legal conclusions and not factual allegations and therefore, no response

is required. To the extent that a response is required, Defendants deny the remaining allegations contained in said paragraph.

6. In response to the allegations contained in paragraph 12 of the Complaint, Defendants admit that Kapolei Charter School initially opened in the 2017-2018 school year with a 9th grade class, and that Dr. Villareal was the School Director. As to the allegation that Dr. Villareal was “self-appointed,” Defendants deny it.

7. Defendants admit the allegations contained in paragraph 14 of the Complaint.

8. In response to paragraph 24, Defendants reallege and incorporate herein by reference their answers to paragraphs 1 – 23 of the Complaint, inclusive, as though fully set forth herein.

9. In response to paragraphs 31, 38 and 39, Defendants deny all allegations of wrong-doing alleged against them in said paragraphs, and otherwise are without sufficient information and knowledge to form a belief as to the truth or falsity of the allegations contained in said paragraphs, and on that basis, deny the same.

10. Defendants deny any and all allegations in the Complaint not specifically admitted, denied or otherwise responded to above.

THIRD DEFENSE

The alleged negligence of Defendants was not the proximate cause of Plaintiffs’ injuries, as their acts or omissions were not a substantial factor in bringing about Plaintiffs’ alleged damages.

FOURTH DEFENSE

If Plaintiffs were injured and/or damaged as alleged in the Complaint, Plaintiffs’ own negligence was the sole proximate cause of or contributed to such injuries and/or damages to Plaintiffs to such an extent that Plaintiffs’ negligence was comparatively greater than that of Defendants and Plaintiffs cannot recover against Defendants, therefor; if Defendants were negligent to a greater degree, nevertheless, Plaintiffs’ recovery, if any, should be lessened in proportion to Plaintiffs’ own negligence.

FIFTH DEFENSE

Plaintiffs acted with poor judgment and a lack of due care at the time of the incident which resulted their injuries and they cannot recover from Defendants.

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SIXTH DEFENSE

If Plaintiffs sustained the injuries alleged in the Complaint, they assumed the risk thereof and the damages of such voluntary assumption of risk were the proximate cause of Plaintiffs' injuries and/or damages.

SEVENTH DEFENSE

Defendants did not act negligently, unlawfully, illegally, knowingly, recklessly, willfully, deliberately, deliberately indifferently and/or maliciously to commit any act or omission alleged against them in the Complaint.

EIGHTH DEFENSE

The negligent acts or omissions of due care of Plaintiffs were the proximate cause of Plaintiffs' alleged injuries and/or damages or were the intervening cause of Plaintiffs' alleged injuries and/or damages, and superseded and isolated the prior alleged negligence, if any, of Defendants.

NINTH DEFENSE

Plaintiffs' alleged injuries and/or damages were sustained as a result of the negligent and/or wrongful and/or illegal acts or omissions of another party or parties and not Defendants.

TENTH DEFENSE

The alleged negligent acts, omissions of due care, and/or conduct, if any, of Defendants or their employees, agents, servants, appointees or representatives were passive and not active, and which merely furnished a condition that was merely a circumstance of the alleged injuries and/or damages to Plaintiffs and accordingly, Defendants are not liable.

ELEVENTH DEFENSE

Plaintiffs' alleged injuries and/or damages were not reasonably foreseeable by Defendants and Defendants cannot be held liable therefor.

TWELFTH DEFENSE

The acts or omissions of Plaintiffs and/or the acts or omissions of other parties which were the cause of Plaintiffs' injuries and/or damages, were acts done beyond the control of Defendants and for which Defendants are not liable.

THIRTEENTH DEFENSE

If Defendants owed a duty to Plaintiffs, Plaintiffs' alleged injuries and/or damages were not the result of a breach of any duty of care owed to Plaintiffs.

FOURTEENTH DEFENSE

Defendant Dr. Villareal acted at all times in good faith, without malice, or within the scope of her duties as employee of the State.

FIFTEENTH DEFENSE

Plaintiffs' alleged injuries were sustained as a result of their own or another third-party's wrongful and/or illegal act.

SIXTEENTH DEFENSE

If Defendant Dr. Villareal is found to have any liability whatsoever in this matter, Defendant Dr. Villareal, in her official capacity, is entitled to have that liability apportioned.

SEVENTEENTH DEFENSE

Defendants are not liable for the alleged injuries and/or damages to Plaintiffs on any and all claims based on the State's alleged failure to adequately enforce statutes, ordinances, rules, regulations and/or any other applicable law.

EIGHTEENTH DEFENSE

If Defendant Dr. Villareal as a State employee or officer is immune from liability, then her employer is likewise immune from liability.

NINETEENTH DEFENSE

Defendant Dr. Villareal is not liable for Plaintiffs' alleged injuries and/or damages on the basis of qualified immunity and/or qualified privilege.

TWENTIETH DEFENSE

Defendants are not liable for Plaintiffs' alleged injuries and/or damages on the basis of Plaintiffs' voluntary actions and/or consent.

TWENTY-FIRST DEFENSE

Defendants give notice that they may rely on the defense of truth.

TWENTY-SECOND DEFENSE

Depending on facts that may be adduced through further investigation and discovery, Defendants may assert that, as a matter of law, Defendants cannot be held liable on any claim based on acts or omissions in performing or failing to perform a discretionary function or duty.

TWENTY-THIRD DEFENSE

Plaintiffs have brought this lawsuit with unclean hands and are accordingly barred from recovery herein.

TWENTY-FOURTH DEFENSE

Plaintiffs have not suffered any emotional distress compensable under the law.

TWENTY-FIFTH DEFENSE

Defendants are not liable to Plaintiffs for punitive damages.

TWENTY-SIXTH DEFENSE

Depending on facts that may be adduced through further investigation and discovery, Defendants may assert that Plaintiffs have failed to properly serve their Complaint.

TWENTY-SEVENTH DEFENSE

Depending on facts that may be adduced through further investigation and discovery, Defendants may assert the Complaint was served in an untimely manner.

TWENTY-EIGHTH DEFENSE

Depending on facts that may be adduced through further investigation and discovery, Plaintiffs' claims may be barred by the applicable statute of limitations.

TWENTY-NINTH DEFENSE

Defendants give notice that they may rely on the defense of Plaintiffs' failure to join indispensable parties.

THIRTIETH DEFENSE

Plaintiffs have failed to mitigate their damages, if any.

THIRTY-FIRST DEFENSE

Plaintiffs' claims, in whole or in part, are barred by Plaintiffs' consent, participation in, creation of or otherwise acquiescence to the condition.

THIRTY-SECOND DEFENSE

Defendants had reasonable grounds to request that minor Plaintiffs be subjected to search.

THIRTY-THIRD DEFENSE

Plaintiffs were lawfully subjected to search, and were not "strip searched."

THIRTY-FOURTH DEFENSE

Defendants acted lawfully and properly in the execution of their duties as authorized by law and rule.

THIRTY-FIFTH DEFENSE

Depending on facts that may be adduced through further investigation and discovery, Defendant KCS and Dr. Villareal, in her official capacity, may assert that, under Chapter 662,

HRS, Defendant Dr. Villareal is immune from liability for any claim arising out of the facts of the present case.

THIRTY-SIXTH DEFENSE

To the extent that Plaintiffs assert joint and several liability, Defendants assert entitlement to the limiting effects of §663-10.5, Hawaii Revised Statutes.

THIRTY-SEVENTH DEFENSE

Defendants are not liable for pre-judgment interest.

THIRTY-EIGHTH DEFENSE

The Court has no jurisdiction over civil suits for monetary damages for Constitutional violations. Moreover, Plaintiffs' Constitutional rights have not been violated by any act or omission of Defendants.

THIRTY-NINTH DEFENSE

Plaintiffs' claims are barred by the doctrines of waiver, estoppel, res judicata, collateral estoppel, release, and laches.

FORTIETH DEFENSE

Defendants are not liable to Plaintiffs for any alleged injury or damage since Plaintiffs cannot establish a fiduciary relationship.

FORTY-FIRST DEFENSE

Even if the alleged conduct occurred, which is disputed, prompt and appropriate remedial action was taken.

FORTY-SECOND DEFENSE

Plaintiffs' claims are barred by their own fraud, misrepresentations, and other misconduct.

FORTY-THIRD DEFENSE

The conduct of Defendants was at all times lawful, reasonable and proper.

FORTY-FOURTH DEFENSE

Plaintiffs have failed to plead sufficient detailed facts or damages entitling Plaintiffs to any special damages, however defined, under and pursuant to Rule 9 of the Hawai'i Rules of Civil Procedure.

FORTY-FIFTH DEFENSE

Defendants reserve the right to assert any affirmative or other defenses that become known through discovery and to seek leave to amend their Answer to allege any such defenses

and to assert any other defenses, claims, cross-claims and counterclaims as discovery and the evidence may merit.

WHEREFORE, Defendants pray as follows:

A. That the Complaint be dismissed with prejudice, or in the alternative, that Plaintiffs take nothing by the Complaint;

B. That Defendants be awarded their reasonable attorneys' fees and costs;

C. That if it be determined that other Defendants to be named and/or Plaintiffs, or any of them, were negligent or their acts and/or omissions were otherwise wrongful with respect to the events described in the Complaint, the relative and comparative degree of fault be determined in accordance with Sections 663-10.5 and 663-31 of the Hawaii Revised Statutes, as amended, and judgment be rendered accordingly; and

D. That this Honorable Court award such further relief as may be just and proper under the circumstances.

DATED: Honolulu, Hawai'i, February 21, 2023.

ANNE E. LOPEZ

Attorney General for the State of Hawai'i

/s/ Justine Hura

AMANDA J. WESTON

JUSTINE HURA

Deputy Attorneys General

Attorneys for Defendants

WANDA VILLAREAL, in her individual and
official capacity and

KAPOLEI CHARTER SCHOOL

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Invasion of Privacy, Negligent Failure To Protect
While In A Fiduciary Capacity, Conspiracy)

CERTIFICATE OF SERVICE

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the date stated below, a copy of the foregoing
document was duly served upon the parties named below via the method indicated below.

WILLIAM F. SINK, ESQ.
Law Office of William Fenton Sink
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Honolulu, Hawai‘i 96813

Attorney for Plaintiffs

jennifer@wfsinklawn.com ☒ JEFS
☐ U.S. Postal Service
☐ Personal Service

DATED: Honolulu, Hawai‘i, February 21, 2023.

ANNE E. LOPEZ
Attorney General for the State of Hawai‘i

/s/ Justine Hura

AMANDA J. WESTON
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